

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 2084

 By: Paxton and Jett of the
 Senate

6 and

7 Hilbert of the House

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10 An Act relating to The Governmental Tort Claims Act;
11 defining terms; limiting settlement awards for
12 wrongful termination claims; providing for inclusion
13 of certain damages; providing for exclusion of
 certain contributions or wages; providing exceptions
 to applicability; providing for codification; and
 providing an effective date.

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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 163.1 of Title 51, unless there
19 is created a duplication in numbering, reads as follows:

20 A. As used in this section:

21 1. "Faculty member" means any regular faculty member as defined
22 by the applicable policy of the subject institution;

23 2. "Institution" means any institution within The Oklahoma
24 State System of Higher Education, the governing body of any

1 institution within The Oklahoma State System of Higher Education, an
2 employee of an institution within The Oklahoma State System of
3 Higher Education, and a member of the governing body of any
4 institution within The Oklahoma State System of Higher Education;
5 and

6 3. "Wrongful termination claim" means any claim, cause of
7 action, complaint, grievance, lawsuit, or demand for monetary or
8 equitable relief, arising under state law alleging wrongful
9 termination of an employee.

10 B. Notwithstanding any provision of law to the contrary, the
11 total amount paid by an institution to a faculty member to resolve a
12 wrongful termination claim under state law, whether by voluntary
13 settlement between the institution and the faculty member,
14 arbitration award, or court judgment, shall not exceed an amount
15 equal to two (2) years of the faculty member's base salary,
16 compensation, or contractual benefit, as of the date of termination.
17 Such limitation shall include, but not be limited to, back pay,
18 compensatory damages, liquidated damages, and any other monetary
19 relief, but shall not include retirement contributions already
20 earned by the faculty member or accrued unpaid wages or leave
21 accrued by the faculty member.

22 C. The provisions of this section shall not apply to any
23 written contract, whether dated prior to, on, or after the effective
24 date of this act, related to the institution and executed between

1 the institution and an employee of the institution who is not a
2 faculty member as defined in subsection A of this section.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
6 OVERSIGHT, dated 04/14/2026 - DO PASS.
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